

**L.1. FAA AMS CLAUSES AND PROVISIONS INCORPORATED BY REFERENCE****Clause 3.1-1 Clauses and Provisions Incorporated by Reference (July 2019)**

This screening information request (SIR) or contract, as applicable, incorporates by reference the provisions or clauses listed below with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make the full text available, or offerors and contractors may obtain the full text via Internet at <https://fast.faa.gov/contractclauses.cfm>.

(End of clause)

**Table L-1: Clauses/Provisions Incorporated by Reference**

| Clause     | Title                                                                       |
|------------|-----------------------------------------------------------------------------|
| 3.2.2.3-1  | False Statements in Offers (April 2024)                                     |
| 3.2.2.3-6  | Submittals in the English Language (September 2020)                         |
| 3.2.2.3-7  | Submittals in U.S. Currency (September 2020)                                |
| 3.2.2.3-12 | Amendments to Screening Information Requests (April 2024)                   |
| 3.2.2.3-13 | Submission of Information/Documentation/Offer (April 2024)                  |
| 3.2.2.3-14 | Late Submissions, Modifications, and Withdrawals of Submittals (April 2024) |
| 3.2.2.3-17 | Preparing Offers (April 2024)                                               |
| 3.2.2.3-18 | Prospective Offeror's Requests for Explanations (April 2024)                |
| 3.8.2-9    | Site Visit (July 2023)                                                      |

**L.2 FAA AMS CLAUSES AND PROVISIONS PROVIDED IN FULL TEXT****3.2.2.3-20 Offers (January 2018)**

(a) The offeror (you) must submit responses to this SIR by the following electronic means: **electronic mail**. Your offer must arrive at the place and by the time specified in the SIR.

(b) Such offers must refer to this SIR and include, as applicable, the item or sub-items, quantities, unit prices, time and place of delivery, all representations and other information required and a statement specifying the extent of your agreement with all the FAA's (we) terms, conditions, and provisions.

(c) We may decline to consider offers that do not include required information, or that reject any of the terms, conditions and provisions of the SIR.

(d) Send your offer electronically to: [Donald.C.Sumner@faa.gov](mailto:Donald.C.Sumner@faa.gov)

(e) We will not be responsible for any failure attributable to transmitting or receiving the offer, unless it falls under section (a) of AMS provision 3.2.2.3-14 "Late Submissions, Modifications, and Withdrawals of Submittals".

(End of provision)

### **3.2.4-1 Type of Contract (April 1996)**

The FAA contemplates award of an Indefinite Delivery Indefinite Quantity contract resulting from this Screening Information Request.

(End of provision)

### **3.6.1-17 North American Industry Classification System (NAICS) Code (October 2022)**

The North American Industry Classification System (NAICS) code for this procurement is **561612 Security Guards and Patrol Services.**

The small business size standard as defined by the Small Business Administration (SBA) is the following:

The above NAICS code is based on SBA's calculation of annual receipts. The annual average receipts cannot exceed **\$29M.**

(End of provision)

### **3.9.1-3 Protest (April 2024)**

AS A CONDITION OF SUBMITTING AN OFFER OR RESPONSE TO THIS SIR (OR OTHER SOLICITATION, IF APPROPRIATE), THE OFFEROR OR POTENTIAL OFFEROR AGREES TO BE BOUND BY THE FOLLOWING PROVISIONS RELATING TO PROTESTS:

(a) Protests concerning Federal Aviation Administration Screening Information Requests (SIRs) or awards of contracts shall be resolved through the Federal Aviation Administration (FAA) dispute resolution system at the Office of Dispute Resolution for Acquisition (ODRA) and shall be governed by the procedures set forth in 14 C.F.R. Parts 14 and 17, which are hereby incorporated by reference. Judicial review, where available, will be in accordance with 49 U.S.C. 46110 and shall apply only to final agency decisions. A protestor may seek review of a final FAA decision only after its administrative remedies have been exhausted.

(b) Offerors initially should attempt to resolve any issues concerning potential protests with the Contracting Officer. The Contracting Officer should make reasonable efforts to answer questions promptly and completely, and, where possible, to resolve concerns or controversies. The protest time limitations, however, will not be extended by attempts to resolve a potential protest with the Contracting Officer.

(c) The filing of a protest with the ODRA may be accomplished by mail, overnight delivery, hand delivery, or by facsimile or if permitted by order of the ODRA, by electronic filing. A protest is considered to be filed on the date it is received by the ODRA during normal business hours. The ODRA's normal business hours are from 8:30 am to 5:00 pm Eastern Time.

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(d) Only an interested party may file a protest. An interested party is one whose direct economic interest has been or would be affected by the award or failure to award an FAA contract.

Proposed subcontractors are not "interested parties" within this definition.

(e) A written protest must be filed with the ODRA within the times set forth below, or the protest shall be dismissed as untimely:

(1) Protests based upon alleged improprieties in a solicitation or a SIR that are apparent prior to bid opening or the time set for receipt of initial proposals shall be filed prior to bid opening or the time set for the receipt of initial proposals.

(2) In procurements where proposals are requested, alleged improprieties that do not exist in the initial solicitation, but which are subsequently incorporated into the solicitation, must be protested not later than the next closing time for receipt of proposals following the incorporation.

(3) For protests other than those related to alleged solicitation improprieties, the protest must be filed on the later of the following two dates:

(i) Not later than seven (7) business days after the date the protester knew or should have known of the grounds for the protest; or

(ii) If the protester has requested a post-award debriefing from the FAA Product Team, not later than five (5) business days after the date on which the Product Team holds that debriefing.

(f) Protests shall be filed at:

(1) For filing by hand delivery, courier or other form of in-person delivery:

Office of Dispute Resolution for Acquisition  
Federal Aviation Administration  
600 Independence Avenue SW., Room 2W100  
Washington, DC 20591; or

For filing by U.S. Mail:

Office of Dispute Resolution for Acquisition  
Federal Aviation Administration  
800 Independence Avenue SW  
Washington, DC 20591  
[Attention: AGC-70, Wilbur Wright Bldg. Room 2W100]; or  
Telephone: (202) 267-3290  
or

(2) Other address as specified in 14 CFR Part 17.

(g) At the same time as filing the protest with the ODRA, the protester shall serve a copy of the protest on the Contracting Officer and any other official designated in the SIR for receipt of protests by means reasonably calculated to be received by the Contracting Officer on the same day as it is to be received by the ODRA. The protest shall include a signed statement from the protester, certifying to the ODRA the manner of service, date, and time when a copy of the protest was served on the Contracting Officer and other designated official(s).

(h) Additional information and guidance about the ODRA dispute resolution process for protests can be found on the ODRA Website at <http://www.faa.gov>.

(End of provision)

### L.3 GENERAL INFORMATION

This section of the SIR provides instructions, conditions, and notices to Offerors.

#### L.3.1 Government Point of Contact

The Contracting Officer (CO) is the sole point of contact for this acquisition. All questions or concerns must be addressed to the CO in writing via e-mail.

#### L.3.2 Projected Acquisition Schedule

The projected acquisition schedule for this SIR is provided in Table L-3 below. Acquisition milestones are provided for information purposes only and are subject to change.

**Table L-3: Acquisition Schedule\***

| Milestone                                   | Date                                                    |
|---------------------------------------------|---------------------------------------------------------|
| SIR Release                                 | 4/14/2026                                               |
| FAA Receive Questions from Industry         | 4/28/2026                                               |
| FAA Response to Questions Posted on Sam.gov | 5/7/2026                                                |
| Proposal Submission Due                     | <Am0001>See L.5 below<br><del>5/14/2026</del> </Am0001> |
| Contract Award                              | 7/30/2026                                               |

\*For informational purposes only; subject to change. If there is a conflict between Table L-3 and other information provided by FAA on SAM.gov the information on SAM.gov controls.

#### L.3.3 Completeness/Compliance with Instructions

The FAA reserves the right to award a contract based on initial offers received, without discussions or negotiations of such offers. Therefore, it is critical that each offer is fully responsive to the SIR, without exception of any provision, and the information must be clear and complete. Each Offeror

must submit a proposal that represents its best efforts to respond to the SIR requirements, including the Statement of Work (SOW) requirements.

The FAA will review all proposals to ensure completeness, response to all elements, and adherence to Section L (this section) of the solicitation. Those proposals that do not meet these requirements may be rejected. The successful Offeror is responsible for compliance with the entire Section C and all attachments of the solicitation/contract.

When evaluating an Offeror's capability to perform the prospective contract, the FAA will also consider compliance with these instructions. The FAA will consider an Offeror's non-compliance with all these instructions as indicative of the quality of work the FAA may expect from the Offeror during contract performance. Non-compliance with these instructions may be considered indicative of a quality problem and assessed as a risk.

#### **L.3.4 Expenses Related to Offeror Submissions**

The Government will not pay for the information solicited, nor reimburse the Offeror for any costs incurred in the preparation of, or the submission of, any response to this SIR. This includes costs associated with any studies or research carried out in the preparation thereof. No pre-contract costs will be allowed on this contract. Pre-contract costs are defined as any costs incurred at the Offeror's risk in anticipation that any such costs may later be charged to any resulting contract.

#### **L.3.5 Equal Access to Information**

Any information concerning the SIR given to any Offeror will be promptly furnished to all other Offerors. If the information is necessary for submitting proposals, or if the lack of it would be prejudicial to any other Offeror, the information will be furnished as an amendment to the SIR. It is the Offeror's responsibility to monitor the SAM website for updates. All questions and comments will be answered via an amendment to this solicitation and provided to all Offerors. Questions will not be attributed to any particular vendor.

#### **L.3.6 Provide Notice of Intent to Withdraw Proposal**

The Offeror is advised that proposals may be withdrawn at any time prior to contract award in accordance with AMS 3.2.2.3-14, Late Submissions, Modifications, and Withdrawals of Submittals. The Offeror may withdraw the proposal by written notice (in hardcopy or electronic with electronic signature) or in-person, by the Offeror, or by an authorized representative.

### **L.4 COMMUNICATION WITH OFFERORS**

The FAA reserves the right to award a contract without communications after evaluation of initial written submissions. The FAA also reserves the right to conduct Offeror specific communications, or to conduct communications and permit Offerors to revise their proposals, if the CO deems these measures appropriate and in the best interest of the FAA.

The FAA may, at any time, communicate with Offerors on an individual basis to explain or clarify particular aspects of the competition, to negotiate as appropriate the terms and conditions of the proposed contract, or to seek additional information regarding Offerors' submissions.

Communication with potential Offerors may take place throughout the source selection process. The purpose of communications is to ensure mutual understandings between the FAA and the Offerors on all aspects of the solicitation, including the Offerors' proposals. Information disclosed as a result of oral or written communication with an Offeror may be considered in the evaluation of an Offeror's proposal.

#### L.4.1 Questions, Concerns, and Clarifications

The Offeror is instructed to direct general questions, concerns, and clarifications to the CO listed in Section L.2 of this SIR. All Offeror questions, concerns, and clarification requests specific to the SIR must be made in writing and submitted to the CO via email **no later than April 28, 2026 at 5:00 PM Eastern Time**. The subject line must read "Questions for SIR #693KA8-26-R-00003" to be included in the government's response. Telephonic or mailed inquiries will not be accepted.

Questions, concerns, and clarifications must refer to the applicable SIR section, paragraph, and page number, as appropriate (e.g., Section H, Paragraph H.2, Page 1).

- (a) The FAA will respond to questions with a posted response on the Sam.gov website; however, the FAA will not identify sources of the questions.
- (b) Written inquiries received within this timeframe will be answered in writing and posted to the Sam.gov website on or prior to **May 7, 2026**. The source of written inquiries will not be identified.
- (c) The FAA reserves the right to not answer any requests received outside of the above timeframe. Furthermore, Offerors must note that the proposal due date will not be extended solely based on questions received within or beyond the timeframe mentioned above.

#### L.5 PLACE, DATE, AND TIME FOR SUBMISSION OF PROPOSALS

- (a) ADDRESS – The proposal must be e-mailed to the following address:

**ATTN: Donald Sumner**

Subject: Response for SIR # 693KA8-26-R-00003

Email: [Donald.C.Sumner@faa.gov](mailto:Donald.C.Sumner@faa.gov)

- (b) TIME AND DATE – **The proposal must be received by the FAA at the above address no later than <Am0001> May 19, 2026 May 14, 2026 </Am0001> at 2:00 PM Eastern Time.** The Offeror may request a receipt for the proposal submission.
- (c) PROPOSAL SUBMISSION – The Government will not accept any submission made by

hand delivery, facsimile, telex, telegraph, or similar devices. The Offeror assumes full responsibility for ensuring its proposal is submitted no later than the date and time specified above. If the proposal is received after the due date and time for receipt of proposals it will be considered late and will not be evaluated.

## **L.6 CHANCE FOR CONTRACT AWARD**

If at any point during the evaluation of offers, the FAA concludes, based on information submitted by an Offeror, that the Offeror does not have a reasonable chance for contract award, then that Offeror will be no longer eligible for award and will be eliminated from further consideration. Any Offeror eliminated from further consideration will be officially notified in writing.

## **L.7 NUMBER OF AWARDS**

The FAA anticipates awarding one contract from this SIR.

## **L.8 PROPOSAL GENERAL INSTRUCTIONS**

The Offeror must comply with all instructions in Section L when developing its proposal. The proposal must conform to all incorporated AMS clauses and be prepared in accordance with this section.

The Offeror must ensure that the proposal satisfies the requirements specified in all SIR documents. The Offeror is instructed to submit only documentation that is relevant to the requirements of this SIR and to ensure that it is complete, concise, and includes sufficient supporting detail for evaluation and for substantiating the validity of stated claims. The proposal should not simply rephrase or restate the Government's requirements, but rather it should provide convincing rationale for how the Offeror intends to meet these requirements. An incomplete proposal or a proposal that contain deviations may be excluded from further consideration.

The Offeror must assume that the Government will base its evaluation solely on the information presented in their proposal. The Government will not assume that the Offeror possesses any capabilities not expressly specified in the proposal.

### **L.8.1 Proposal Acceptance**

- (a) Only one proposal from each Offeror (Prime Contractor) will be considered.
- (b) The FAA reserves the right to reject as unacceptable proposals not submitted in accordance with the requirements set forth in the SIR and/or proposals which do not demonstrate an understanding of the complexity and scope of the requirements.
- (c) The FAA reserves the right to reject as unacceptable proposals deleting or altering technical requirements, proposals submitted after the deadline, and proposals submitted that did not follow the instructions to offerors as outlined in this Section L.



- (d) The FAA reserves the right to reject as unacceptable proposals submitted from Joint Venture (JV) Offerors that do not have five (5) or more years of consecutive experience as a JV providing armed 24/7 (24 hours per day, seven (7) days per week) CSO services. JV members using their individual firms' experience does not qualify as meeting the requirements.
- (e) The FAA reserves the right to reject as unacceptable proposals from Offerors who cannot meet the requirements independent of/without the use of an affiliate/division partner or the resources of an affiliate/division partner.

#### **L.8.2. Period of Offer**

The proposal must be binding for at least **180** calendar days from the solicitation closing date. The Offeror may propose for their offer to be binding for more than 180 calendar days; however, if the proposal is binding for less than 180 calendar days, it may be deemed unacceptable and may be rejected.

#### **L.8.3. False Statements**

In accordance with AMS Clause 3.2.2.3-1, False Statements in Offers, the proposal must set forth full, accurate, and complete information, including attachments. The penalty for making false statements in proposals is described in 18 U.S.C. 1001.

#### **L.8.4 Restricted Disclosure**

Any data that may contain trade secrets, copyright data, and/or financial information which the Offeror do not want disclosed for any purpose other than the evaluation of the proposal must be marked in accordance with AMS 3.2.2.3-16, "Restricting, Disclosing and Using Data (July 2024)."

#### **L.8.5 Notification of Discrepancies, Exceptions, Deviations, and Assumptions**

If the Offeror believes that these Section L instructions contain an error, omission, or are otherwise not correct, the Offeror must immediately notify the CO in writing with supporting rationale. If discrepancies are not noted prior to Offer submission, then none are presumed to exist.

In addition, the Offeror is instructed to explicitly document within their proposal all exceptions and deviations contained in any part of the SIR and to address them to the CO with supporting rationale. The Offeror is further instructed to document within their proposal any assumptions on which their offer is based.



**L.8.6 Legally Binding Proposals**

This SIR constitutes a formal document for which a contract award may be made without communications or negotiations. The Offeror is instructed to comply with all terms and conditions contained in preparation of their proposals.

**L.9 PROPOSAL SUBMISSION AND DELIVERY INSTRUCTIONS**

Offerors must submit three emails, one per volume submission, to the point of contact identified in Section L.5 as follows:

- (1) Email #1: Volume 1 Submission
- (2) Email #2: Volume 2 Submission
- (3) Email #3: Volume 3 Submission

The Offeror's proposal submission must be organized as listed in Table L.9 below:

**Table L.9 Proposal Volume Requirements**

| <b>VOLUME</b> | <b>TITLE</b>                                                                                                                                                                                                     | <b>PAGE LIMIT</b> |
|---------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------|
| <b>VOL 1</b>  | <b>OFFER AND OTHER DOCUMENTS</b>                                                                                                                                                                                 | <b>N/A</b>        |
| Section 1     | Solicitation Cover Page (and amendments if applicable) - signed by authorized representative of company                                                                                                          |                   |
| Section 2     | SIR Section I - filled in completely                                                                                                                                                                             |                   |
| Section 3     | SIR Section K - filled in completely and signed                                                                                                                                                                  |                   |
| Section 4     | Copies of State Certificates & Licenses                                                                                                                                                                          |                   |
| Section 5     | Responsible Prospective Contractors                                                                                                                                                                              |                   |
| <b>VOL 2</b>  | <b>PRICING</b>                                                                                                                                                                                                   | <b>N/A</b>        |
| Section 1     | SIR Attachment J.5 Pricing Workbook-Includes SIR Section B Input (to be incorporated into Contract Section B upon award); Summary of Prices by Site and Verification of SCA and CBA Wages - filled in completely |                   |
| Section 2     | Pricing Methodology (written narrative in Offeror's format)                                                                                                                                                      |                   |
| <b>VOL 3</b>  | <b>MANAGEMENT, TECHNICAL, AND PAST PERFORMANCE CONFIDENCE PROPOSALS</b>                                                                                                                                          | <b>60 pages</b>   |
| <b>Part A</b> | <b>Management Proposal (Factor 1)</b>                                                                                                                                                                            |                   |
| Section 1     | Management Approach, including a Program Management Plan in accordance with Section C.18.1 (Subfactor 1.1)                                                                                                       |                   |
| Section 1.1   | Subcontracting/Teaming Arrangements                                                                                                                                                                              |                   |
| Section 1.2   | Management Organization                                                                                                                                                                                          |                   |
| Section 2     | Transition (Subfactor 1.2)                                                                                                                                                                                       |                   |

|               |                                                                              |  |
|---------------|------------------------------------------------------------------------------|--|
| Section 2.1   | Transition Methodology                                                       |  |
| Section 2.2   | Transition Timeline                                                          |  |
| Section 2.3   | Transitional Staffing                                                        |  |
| Section 2.4   | Transitional Staff Qualifications                                            |  |
|               |                                                                              |  |
| <b>Part B</b> | <b>Technical Proposal (Factor 2)</b>                                         |  |
| Section 1     | Staffing (Subfactor 2.1)                                                     |  |
| Section 1.1   | Temporary Additional Staffing (Surge Response)                               |  |
| Section 1.2   | Maintenance of Staff Certifications and Qualifications                       |  |
| Section 1.3   | Records Control                                                              |  |
| Section 2     | Quality Management (Subfactor 2.2)                                           |  |
| Section 2.1   | Supervision of Security Officers                                             |  |
| Section 2.2   | Quality Control                                                              |  |
| <b>Part C</b> | <b>Past Performance Confidence (Factor 3)</b>                                |  |
| Section 1     | Relevance (Subfactor 3.1)                                                    |  |
| Section 2     | Quality (Subfactor 3.2)                                                      |  |
| <b>Part D</b> | <b>Small Business Subcontracting Plan (Other-than-Small Businesses Only)</b> |  |

### L.9.2 Proposal Formatting

The Offeror must use 8.5 x 11-inch pages and single-spaced typing with 1-inch margins on the top, bottom, and both sides. The font used for text must be Times New Roman, size 12.

<Am0001> Offerors may use 10-point font or larger for headers and footers, tables, and graphics. </Am0001> A single printed side of paper counts as one page. Pages with printing on both sides count as two pages. Pages should be marked with the subject solicitation number and “Source Selection Sensitive”.

If any information provided in an Offeror’s proposal is considered “Proprietary” by the Offeror, the Offeror should label as instructed in section L.8.4, Restricted Disclosure. The proposal pages must be numbered sequentially. Any items embedded within a document must be objects only, not links.

The Offeror must prepare its proposal as set forth in the Proposal Volume Requirements Table. Page limitations must be treated as maximums. The following pages are excluded from the page count limitations: Related Information.

Volumes 1 and 3 shall be submitted as PDF. Volume 2 shall be submitted in Microsoft Excel. The Price Narrative for Volume 2 should be submitted as PDF.

### **L.9.3 Disposition of Proposals**

Proposal files will not be returned, and a copy of each proposal will be retained in the official contract file.

### **L.9.4 Proposal Volume Requirements**

#### **L.9.4.1 Volume 1 – Offer And Other Documents**

Volume 1 consists of the actual offer to enter into a contract to perform the desired work. It also includes required representations, certifications, other statements of the Offeror, and any other administrative information. Each Offeror must provide within this volume a table of contents depicting what is contained in each of the volumes submitted in the Offeror’s proposal, as well as a listing of all acronyms used and a glossary of terms.

##### **L.9.4.1.1 Volume 1, Section 1 - Solicitation Cover Page**

The Offeror must have an official who is legally authorized to bind the Offeror to a contract sign the cover page, block 16. If issued, all solicitation amendments must be signed and submitted here.

The cover page, titled “Solicitation, Offer, and Award,” blocks 11 and 13-17, are required Offeror fill-ins and are self-explanatory. In block 14a with Offeror’s name and address, the Offeror must supply the Unique Entity Identifier (UEI) applicable to that name and address. The number must be preceded by “UEI.” Offerors must take care to report the correct UEI and not a similar number assigned to the Offeror in a different system. The UEI is a 12-character alphanumeric code assigned to a contractor establishment which contracts with a Federal executive agency. The UEI system is a contractor identification coding system which is used by SAM.gov. The CEC system is distinct from the Federal Taxpayer Identification Number (TIN) system.

##### **L.9.4.1.2 Volume 1, Section 2 - SIR Section I, Contract Clauses**

The Offeror must complete the required fill-in portions of Section I, Contract Clauses 3.1.7-6 Disclosure of Certain Employee Relationships and include Section I in the offer.

##### **L.9.4.1.3 Volume 1, Section 3 - SIR Section K, Representation, Certifications, And Other Statements of Offeror**

The Offeror must complete Section K, Representations, Certifications, and Other Statements of Offeror, and include Section K in the offer.

##### **L.9.4.1.4 Volume 1, Section 4 - Copies of State Certificates & Licenses**

The Offeror must provide copies of their State certificates and licenses required to obtain Security Officer licenses or weapons permits as required in Section C.3.d/C.10. If subcontractor(s) are proposed, the offeror must also provide evidence of active licenses or permits for the subcontractor(s) for states covered by this contract. Failure to provide evidence of active license and/or permits in the proposal may result in rejection of an Offeror's proposal as unacceptable or otherwise non-compliant.

<Am0001> The state certification/licenses must be held by the prime contractor and/or subcontractor that will be performing the services in the state the license or certification. Licenses cannot be submitted for a prime or subcontractor that will not be providing the services in that state. </Am0001>

#### **L.9.4.1.5 Volume 1, Section 5 – Information Regarding Financial Capability**

The Offeror must be found responsible in accordance with FAA AMS Guidance T3.2.2.7 (Contractor Qualifications) prior to award of any contract. To support this finding, Offerors must submit sufficient information to demonstrate the financial capability to perform a contract of this size and duration. This information must include the following:

- (a) Proof of any Line(s) of Credit by a U.S. Banking Institution.
- (b) At a minimum the ability to cover payroll and, other operating and administrative expenses to accommodate FAA "in arrears" payments for work performed for periods up to ninety (90) calendar days.
- (c) A description of all current or pending legal action under federal, state, local, or foreign government contracts or solicitations initiated, ongoing, or completed within the past three (3) years in excess of \$5M, claims, equitable adjustments, pending or ongoing cure notices, Terminations for Convenience, and/or Terminations for Default.
- (d) Financial Statements for the last three (3) consecutive company fiscal years. If available, the company must submit audited financial statements. If audited financial statements are available, but are not submitted, the Offeror will be considered noncompliant. Financial Statements must be signed by a company officer. Financial Statements that are not signed by a company officer will not be accepted. If certified, audited financial statements are not available then financial statements prepared by an internal member of the company management are acceptable.

#### **L.9.4.2 Volume 2 – Pricing**

Volume 2 consists of Attachment J.5 (L.9.4.2.1) and Price Narrative (L.9.4.2.2). The documents in this volume must be compatible with Microsoft Excel (Attachment J.5), and Microsoft Word <Am0001> or PDF format for the supporting price narrative </Am0001>. Spreadsheets must be editable and display formulas, not values, in cells. Digital spreadsheets in Word or PDF formats ARE NOT acceptable. All electronic spreadsheets must be self-calculating and must not contain hidden cells, be locked/protected, or secured by password.

- (a) Pursuant to the Service Contract Act of 1965 and as amended to the Services Contract

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Labor Standards, the determination by the Secretary of Labor as to the applicable minimum monetary wage and fringe benefits will be made part of any resulting contract. The Government has provided the applicable Area Wage Determinations in Attachment J.2 and the current Collective Bargaining Agreements in Attachment J.3 of this SIR. It must be noted that compliance with labor rules, laws and regulations is the responsibility of the Offeror. <Am0001>~~Escalation of labor, Health and Welfare rates, and any other indirect costs/rates embedded in the fully burdened hourly rates are not permitted.~~

Offerors must follow and include the current rates outlined in an existing CBAs, including any future increases, in their price proposal. If increases are not identified in the CBA, the prevailing CBA rates must not be increased. Offerors must use and include the current rates outlined in a SCA Wage Determination (WD), but these rates should not be increased in the price proposal.

Offerors may propose indirect rates and profit consistent with their disclosed accounting practices. After the contract is awarded, the indirect cost and profit amounts will become fixed dollar amounts and will remain unchanged, regardless of any adjustments in CBA or WD rates. </Am0001>

- (b) This SIR is exempt from the submission of certified cost/pricing data; however, the FAA may use or request information other than certified cost or pricing data to support a determination of a fair and reasonable price in accordance with AMS Guidance T3.2.3.A.1.a.

**3.2.2.3-38 Alternate II Requirements for Certified Cost or Pricing Data or Data Other Than Certified Cost or Pricing Data (Jan 2022)**

- (a) The FAA does not require submission of certified cost or pricing data.

- (b) The offeror must provide the following data:

Offeror must provide pricing data listed in Section L.9.4.2 including all subsections.

(End of clause)

**L.9.4.2.1 Volume 2, Section 1 - SIR Attachment J.5 Pricing Workbook**

Offerors are required to complete the Price Worksheets in Attachment J.5 of this SIR. Offerors must complete the Section B Input and the Summary of Prices by Site worksheets for the total scope of the program effort across the entire contract period of performance, for all CLINs. Offerors must ensure the amounts proposed in Section B Input worksheet match the amounts in the Summary of Prices by Site worksheet. If a discrepancy occurs, the prices submitted in Section B Input worksheet will be considered to be the correct proposed price. However, Offerors are advised that a submission with discrepancies or omissions is not useful for evaluation and may be eliminated from further evaluation. Offeror must propose on all sites to be eligible for award.

Attachment J.5 includes four (4) separate primary tabs/forms, as follows:

- (1) SIR Section B input
- (2) Summary of Prices by Site
- (3) Verification of SCA Wages
- (4) Verification of CBA Wages

In addition to the above primary tabs/forms, SIR Attachment J.5 Pricing Workbook includes secondary site-specific Rate Buildup tabs. Offerors must input hours and the base rate for each guard in each site's Rate Buildup tab. Offerors must complete each site's Rate Buildup tab by populating the highlighted cells based on the Offeror's assumptions (e.g. Vacation, Indirect Rates, profit), applicable Wage Determinations, CBAs, and State/Federal payroll taxes. The Rate Buildup Tabs are not password protected and can be modified by the Offerors. However, Offerors must ensure that any additions are appropriately reflected in the total price in Section B Input tab.

Each site's Rate Buildup tab is linked to the monthly price for the Basic Service (CLINs XXXX1) and unit prices for the Temporary Additional Services (CLINs XXXX2), Emergency Security Services (CLINs XXXX3), Other Services (Time not Worked) (CLINs XXXX4), Training (CLINs XXXX5), Random Screening (CLINs XXXX6), and Roving Patrol (CLINs XXXX7) in the SIR Section B Input. However, Offerors must ensure the amounts proposed in Section B Input match the amounts in each of the site's Rate Buildup tabs.

**(1) Section B Input** – A more detailed description of the CLINs has been provided in the SIR Section B Input Tab of Attachment J.5. Using each of the site's Rate Buildup tabs Offerors must propose prices for the following CLINs:

- (i) **Basic Service** – Offerors must propose a monthly Firm Fixed Price (FFP) for each facility and all five (5) contract periods for CLINs XXXX1 (Basic Service).
- (ii) **Temporary Additional Services (TAS), Emergency Security Services (ESS), and Training** – The Offeror must propose fully burdened (cost through profit) hourly labor rates for each facility for all five (5) contract periods for CLINs XXXX2 (TAS), CLINs XXXX3 (ESS), CLINs XXXX4 (Other Services (Time not Worked)), CLINs XXXX5 (Training), CLINs XXXX6 (Random Screening), and CLINs XXXX7 (Roving Patrol). Attachment J.5 includes labor hours for each of these CLINs. The FAA specified hours are for evaluation purposes only and therefore do not reflect a commitment to order this level of service. The FAA will only include one (1) labor rate for each CLIN/site. The labor hours for each category will be paid at the same rate regardless of whether the individual performing the effort works for the Prime Contractor or a subcontractor. If applicable, the Offeror must blend the labor rates from its subcontractors into a single blended labor rate.

**(2) Price Summary by Site Work** – The price summary by site worksheet will self-populate with the data entered in the Section B input worksheet. However, Offerors must ensure the amounts proposed in Section B Input worksheet match the amounts in the Summary of Prices by Site worksheet.

**(3) Verification of Labor Rate Compliance with Applicable Wage Determinations and Collective Bargaining Agreements (CBA) – Applicable to Prime Contractors and Subcontractors**

Prime contractors, as well as each subcontractor, must provide a crosswalk of the labor category and proposed rates against the applicable Area Wage Determinations or Collective Bargaining Agreements (CBA). Prime contractors and subcontractors must input the proposed base labor hourly rate and fringe benefit (Health & Welfare) dollars per hour for each labor category and location. Each labor category must be identified by location with wage determination number or applicable CBA. The Prime contractors and subcontractors shall also include and separately identify any additional compensation including, but not limited to, shift differentials, paid in cash benefits, as well as non-discretionary bonuses, if applicable. If the Offeror is proposing blended labor rates it must show the calculation to derive the proposed blended rate.

#### **L.9.4.2.2 Volume 2, Section 2 – Pricing Methodology**

~~<Am0001> The Offeror must clearly demonstrate in an Excel document, the labor rate buildup methodology used to develop the fully burdened rates, inclusive of blended rates, if applicable, for each CLIN and location. </Am0001>~~

In a separate <Am0001> Microsoft Word or </Am0001> PDF document, the Offeror must clearly explain the rationale, methodology and assumptions used to determine the proposed prices. The supporting information must be provided at the direct labor base salary and hourly rate levels. Indirect rates, including fringe, and profit must be shown separately.

#### **L.9.4.3 Volume 3 - Management, Technical, And Past Performance Confidence Proposal**

Volume 3 must be submitted WITHOUT any reference to pricing information.

Volume 3 consists of information on the Offeror's processes and procedures that will be implemented to ensure that CSO services are provided in a timely manner and are maintained at a professional level for the duration of the contract, in accordance with the requirements set forth in section C. Within Volume 3, Offerors must provide their processes and procedures related to their Management and Technical proposal, as well as their past performance in the areas specified below.

Each Offeror must provide, within this volume, a table of contents depicting what is contained in the volume as well as a listing of all acronyms used and a glossary of terms. The table of contents, acronyms, and glossary are included in the Volume 3 60-page limit.

#### **L.9.4.3.A Volume 3, Part A, Management Proposal (Factor 1)**



Volume 3, Part A, consists of information on the Offeror's processes for effective and efficient management of CSO services and the process that will be implemented to ensure CSO services are provided in a timely manner in accordance with the requirements set forth in section C. The Offeror must present their Program Management Plan and Transition Plan as part of this proposal, see subfactors below. These plans can be presented without cover pages, table of contents, definitions, or acronym lists. These do count against the 60-page limit for Volume 3. Information that is presented in the Program Management Plan and the Transition Plan need not be duplicated in the rest of the volume.

Offerors should submit required information only at the Subfactor level, not at the Factor level, as Subfactor ratings will be used to determine the overall, rolled-up Factor rating.

#### **L.9.4.3.A.1 Volume 3, Part A, Section 1 - Management Approach (Subfactor 1.1)**

The FAA requires that Offerors provide management strategies and proposed solutions demonstrating how they will result in better value to the government. Management Approach includes specific information on subcontracting arrangements that may be implemented to ensure site coverage. Offerors must include their Program Management Plan per SOW C.18.1 within this subfactor submission in Volume 3, Part A, Section 1.1 below.

##### **L.9.4.3.A.1.1 Volume 3, Part A, Section 1.1 – Subcontracting/Teaming Arrangements**

Offerors must submit only one (1) prime contractor per offer. The information provided must detail the primary point of contact for all correspondence and the processes that will be followed to disseminate information to other team members.

Where Offeror subcontracting arrangements are proposed, a narrative must be submitted as part of the proposal which clearly details the roles, responsibilities, and distribution of effort (by type and percentage) between the parties in performance of the Government's requirement. This information must be provided by the prime contractor in the Contractor's Program Management Plan in accordance with SOW C.18.1.

##### **L.9.4.3.A.1.2 Volume 3, Part A, Section 1.2 - Management Organization**

The Offeror must describe the management organization that will be established to manage the day-to-day as well as emergency or contingency operations that require short/no notice augmentation of established CSO levels at one (1) or more sites.

#### **L.9.4.3.A.2 Volume 3, Part A, Section 2 – Transition (Subfactor 1.2)**

The Offeror must describe its detailed transition plan to ensure that personnel and processes are in place to assume guard service responsibilities at <Am0001> 0000 local time ~~0001 AM~~ on the date of assumption of the services. See F.2 for Periods of Performance. </Am0001> Offeror's must note transition will require that multiple sites transition to the Offeror's service at the same time. The site start dates will be defined in task orders. Transition plans must address the utilization of

incumbent personnel at the sites where services are to be provided.

**L.9.4.3.A.2.1 Volume 3, Part A, Section 2.1 - Transition Methodology**

The Offeror must describe the methods to be used to provide for the timely delivery and proper documentation of all contract-required transition training, considering the magnitude of training requirements and allotted time to accomplish it. The methodology must address Offeror-required site visits to identify site unique requirements and to meet or interview incumbent personnel. Offerors must include their Transition Plan per Section C.18.2 here.

NOTE - In no event must any proposed plan for training be dependent upon availability of Government personnel after normal business hours (e.g., overseeing training during evenings and weekends).

**L.9.4.3.A.2.2 Volume 3, Part A, Section 2.2 - Transition Timeline**

The Offeror must outline all significant transition steps and the associated timeframes for completing all steps to assure timely performance start up, including but not limited to: timely provision of all contract required equipment, licensing, permits, and required contract training. Also included is any time required for FAA-supported training on site-specific equipment.

NOTE: In no event must any proposed transition timeline include assumptions that the government will waive or defer ANY contract requirements.

**L.9.4.3.A.2.3 Volume 3, Part A, Section 2.3 - Transitional Staffing**

The Offeror must describe their processes to be used to acquire the necessary staff to successfully transition and maintain required security operations at the designated facilities. It is not necessary to address each site separately, but rather to state the standard process that will be followed. If there is a site with unique requirements, then that site(s) must be addressed separately.

This section must also address staffing at the Offeror's headquarters or local area offices which will be necessary to support this effort and whether or not this headquarters staffing level will remain intact after transition is complete.

**L.9.4.3.A.2.4 Volume 3, Part A, Section 2.4 - Transitional Staff Qualifications**

The Offeror must describe how it will ensure that each CSO has the required certifications and qualifications, or how the requisite training or certification course will be provided to ensure that all CSOs are fully qualified before commencing work at an FAA facility.

**L.9.4.3.B Volume 3, Part B - Technical Proposal (Factor 2)**

This section consists of information on the Offeror's processes and procedures that will be implemented to ensure that CSO services are provided in accordance with the Staffing and Quality Assurance requirements set forth in Section C of this solicitation.

Offerors should submit required information only at the Subfactor level, not at the Factor level, as Subfactor ratings will be used to determine the overall, rolled-up Factor rating.

**L.9.4.3.B.1 Volume 3, Part B, Section 1 – Staffing (Subfactor 2.1)**

The Offeror must describe its processes for maintaining the quality and quantity of staffing to meet the requirements of this contract. This includes the unexpected departure of personnel and those personnel who are found to be unqualified or non-certified for the site they are supporting. The Offeror must provide its employee retention rate and turnover ratio for the past three (3) years.

**L.9.4.3.B.1.1 Volume 3, Part B, Section 1.1 - Temporary Additional Staffing (Surge Response) and Emergency Security Services**

This contract includes a requirement to price Temporary Additional Staffing (TAS) and Emergency Security Services (ESS), which may be ordered by the Government on an as-needed basis. These additional hours may be ordered at any time during the performance period of this contract and may be ordered without providing for a “phase-in” period.

The Offeror must provide a staffing plan that details how it intends to staff those hours up to the maximum quantities identified in the contract to include supporting TAS and ESS requirements. The staffing plan must detail how the Offeror intends to provide fully licensed, trained/certified CSOs to meet the total estimated hours of this solicitation (i.e., all, or a large portion of the hours may be ordered at once, without providing for additional phase-in time to meet those requirements). In addition, the Offeror must provide a detailed Relief Plan indicating the Offerors approach to providing Relief as well as the specific hours allocated to Relief.

**L.9.4.3.B.1.2 Volume 3, Part B, Section 1.2 - Maintenance of Staff Certifications and Qualifications**

The SOW outlines the certifications and qualifications required for every CSO at FAA facilities. If a CSO’s certification or qualification expires (e.g., the firearms qualification), the CSO is not authorized to work at FAA facilities. The unqualified/non-certified CSO must be replaced by a CSO who meets the requirements of the SOW as stated throughout the SOW. The Offeror must provide:

- (a) Detailed information on the electronic system(s) employed to document and track the status of each CSO’s qualifications and certifications. The Offeror must describe how its system provides for the tracking of the specific requirements for CSOs as listed in the SOW sections referenced above.
- (b) Specific information on the process of tracking the expiration and renewal of certifications and qualifications to ensure that the CSO is fully certified and qualified to fulfill their

assigned position.

#### **L.9.4.3.B.1.3 Volume 3, Part B, Section 1.3 - Records Control**

Attachment J.6 provides a list of individual CSO records that are required to be maintained at the facility to which the CSO is assigned. The hard copies of these records must be readily available for inspection during routine FAA inspections and in the event of an occurrence that would necessitate the review/validation of CSO qualifications and certifications.

This requirement for records at the facility is not intended to preclude the Offeror from developing and maintaining an electronic training, certification, and qualifications records system as described in L.9.4.3.2.3 above. The Offeror must provide:

- (a) Information on how the status of the on-site records will be maintained.
- (b) The process for granting access to FAA and Offeror's personnel for the review and updating of the individual CSO's records.
- (c) Information on how Personal Identifiable Information (PII) will be safeguarded while adhering to the Section C.3.3 requirement to provide copies of records on-site.

#### **L.9.4.3.B.2 Volume 3, Part B, Section 2 - Quality Management (Subfactor 2.2)**

The FAA facilities guarded are important elements in the control of air traffic across the United States and its territories. It is imperative that the guard services provided be of the highest possible quality. The Offeror must provide the details of its quality assurance program that will ensure that high quality, professional services will be provided for the duration of the contract in accordance with SOW Section 19, Quality Management. Information must be provided as to the process for detecting inadequate performance and the methods for rectifying it.

##### **L.9.4.3.B.2.1 Volume 3, Part B, Section 2 .1 - Supervision of Security Officers**

The Offeror must:

- (a) Provide the proposed ratio of supervisors to non-supervisor CSOs. Supervisors are those personnel whose duty is to supervise non-supervisor CSOs.
- (b) Provide your firm's supervisory processes and procedures for ensuring contract requirements are met throughout the period of performance. This must include, but is not limited to, specification of the physical location/geographic duty location(s) of proposed supervisors and a description of the supervisory methods employed and frequency of supervision.

##### **L.9.4.3.B.2.2 Volume 3, Part B, Section 2.2 - Quality Control (QC)**

The Offeror must:

- (a) Describe the Methods of Inspection to be used and delineate specifically what is inspected.
- (b) Detail processes for addressing non-compliance issues (employee and other).
- (c) Address the proposed frequency, locations, and methods of documenting inspections.
- (d) Describe all information generated by the Contractor's QC inspection program that will be transmitted to the Government. In addition, describe how inspection results and corrective actions will be communicated to the Government, including the timing, content, and format of those communications.

#### **L.9.4.3.C Volume 3, Part C – Past Performance Confidence (Factor 3)**

This section consists of information on the Offeror's past performance. The Offeror must demonstrate relevant past performance (as informed by experience) *and* quality of past performance. **Only contracts performed within the past five (5) years as of the date of the SIR will be considered as "recent" Past Performance. To be relevant performance data needs to be recent as described in this paragraph.** Offerors may use multiple contracts during the same timeframe to meet the experience requirement (including the state thresholds).

The Federal Acquisition Regulation (FAR) 15.305(a) (2) allows a company to use its affiliates' past performance in lieu of its own. The FAA **DOES NOT** use the FAR. The FAA is regulated by the Acquisition Management System (AMS). AMS Guidance states that only past performance of the affiliates, division, etc. that are **performing the work** is considered.

Therefore, the past performance of an affiliate, division, parent company, etc that will not be providing CSO services will not qualify the Offeror as having relevant past performance.

Within Volume 3 Part C, Offerors must address their past performance including their compliance with the FAA minimum requirements as described in the SOW and FAA Order 1600.69D:

- (a) The Offeror's (prime contractor's) primary business must be providing armed 24/7 CSO services. If subcontractor(s) are proposed, the subcontractor(s)' primary business must be providing armed 24/7 CSO services.
- (b) **The Offeror (prime contractor) must have at least five (5) or more consecutive years of documented experience in providing armed 24/7 CSO services in each of four or more states concurrently by the proposal submission due date listed in L.3.2. If subcontractor(s) are proposed, each subcontractor must also have at least five (5) or more consecutive years of documented experience in providing armed 24/7 CSO services in each of four or more states concurrently by the proposal submission due date listed in Section L.3.2.** The documented experience must be written evidence of providing armed 24/7 CSO services to large facilities similar to an FAA Security Level 4

(air traffic control tower) or higher staffed facility that has over 450 employees and over 150,000 square feet of space.

#### **L.9.4.3.C.1 Volume 3, Part C, Section 1 – Relevance (Subfactor 3.1)**

FAA will consider the relevance of Offerors' past performance as reflected in completed Attachments L.1, **Past Experience Questionnaire**.

- The Offeror must submit completed **Attachment L.1, Past Experience Questionnaire**, which provides information on the projects/contracts that the Offeror believes are relevant to this solicitation. Three (3) Relevant Past Experience forms must be submitted for the Offeror (Prime Contractor) and for each subcontractor the Offeror includes in their proposal. If this experience is not demonstrated within the Past Experience forms, Offerors must provide additional narrative to demonstrate the listed requirements.

#### **L.9.4.3.C.2 Volume 3, Part C, Section 2 – Quality (Subfactor 3.2)**

FAA will also consider the quality of Offerors' past performance, as reflected in completed Attachments L.2.

- Concurrent with the Experience form, the Offeror must provide to each of the customers referenced a corresponding **Attachment L.2, Past Performance Questionnaire**, to be completed by that customer and returned to the FAA in the proposal or separately at the email address provided in section L.5.(a) by the date and time provided in section L.5.(b). Information provided in response to this element will assist the Government in determining the quality of Offerors' past performance, including the degree of risk associated with award of this project to the Offeror in question, based upon that Offeror's performance on other relevant projects. It is the Offeror's responsibility to ensure that the completed questionnaires are provided to the FAA by the deadline provided in section L.5.(b).

Offerors must submit no more than three (3) projects/contracts for itself and no more than three (3) projects/contracts for each subcontractor.

#### **L.9.4.3.D Volume 3, Part D – Small Business Subcontracting Plan (Other-than-Small Businesses Only)**

If applicable, the Offeror must provide a small business subcontracting plan per AMS Clause 3.6.1-4 Small Business Subcontracting Plan.

### **L.10 SECTION L - ATTACHMENTS**

**Table L-10: List of Section L Attachments**

| Attachment Number | Description | SIR Reference | Format |
|-------------------|-------------|---------------|--------|
|-------------------|-------------|---------------|--------|

|     |                                |                    |     |
|-----|--------------------------------|--------------------|-----|
| L-1 | Past Experience Questionnaire  | Section L.9.4.3.C. | PDF |
| L-2 | Past Performance Questionnaire | Section L.9.4.3.C. | PDF |

**End of Section L**

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